

25STCV08896 25STCV08896

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-24

Motion: PLAINTIFF'S MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST FOR DECEASED PLAINTIFF

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Case Number: 25STCV08896 Hearing Date: September 24, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

FELIZA KOHAN, an Individual,

Plaintiff,

vs.

THE VILLAGE GREEN OWNERS
ASSOCIATION, ROSS MORGAN MANAGEMENT, STEVEN HAGGERTY; and Does 1 through 100,
inclusive,

Defendants.

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CASE NO: 25STCV08896

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST FOR DECEASED PLAINTIFF

Dept. 731

September 24, 2026

8:30 A.M.

Calendar No.16

Moving Party: Plaintiff's natural adult son, DAVID KOHAN as the successor
in interest for his deceased mother, PLAINTIFF, FELIZE KOHAN

Opposing Party: None

Notice: OK

Background Facts

Now before the Court is a motion by
David Kohan, natural adult son of Plaintiff Felize Kohan, Deceased, for an
order permitting him to substitute into this action as a successor-in-interest
plaintiff to his late mother. The motion was properly served via email on
counsel for Defendants, who have failed to file an opposition to the motion.

Motion to Substitute

Plaintiff

a. Legal

Standard

“Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.) “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect.” (Code Civ. Proc., § 473, subd. (a)(1).) For example, “[u]nder certain circumstances, a complaint may be amended to substitute a new plaintiff where it is determined the named plaintiff is not the proper party to maintain the alleged claims, so long as the amendment does not present an entirely new set of facts and the defendant is not prejudiced.” (Demetriades v. Yelp, Inc. (2014) 228 Cal.App.4th 294, 305-306.) Such an amendment may take place after trial has been concluded, judgment entered, and a motion for new trial denied, or even after an appeal has been taken. (Erickson v. Boothe (1949) 90 Cal.App.2d 457, 459.) California courts should liberally allow such amendments to substitute as plaintiffs the true real parties in interest. (CashCall, Inc. v. Superior Court (2008) 159 Cal.App.4th 273, 287, citing Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 1004.)

A personal representative has standing to enforce the rights of the decedent’s estate. (See Code Civ. Proc., § 369, subd. (a)(1); Olson v. Toy (1996) 46 Cal.App.4th 818, 823-824 (Olson); see also Roes v. Wong (1999) 69 Cal.App.4th 375, 378 [executor of deceased borrower’s estate has standing to assert usury].) A “personal representative” ordinarily is (1) an executor named in the will, (2) a successor to that executor, called an “administrator-with-the-will-annexed,” or (3) an administrator when the decedent died without naming an executor. (Estate of Hilton (1996) 44 Cal.App.4th 890, 894, fn.1; see Prob. Code, § 58, subd. (a).) Generally, an heir does not have standing to sue on behalf of the estate. (Holland v. McCarthy (1918) 177 Cal. 507, 510; Olson, supra, at pp. 823-824; see, e.g., Amundson v. Catello (2025) 111 Cal.App.5th 817, 827-828 [personal representative’s stipulation permitting heirs to handle estate litigation on representative’s behalf did not confer standing on heirs to participate in suit]; see also Prob. Code, § 44 [“‘Heir’ means any person,

including the surviving spouse, who is entitled to take property of the decedent by intestate succession under this code.”].)

Discussion

After review, the Court finds insufficient grounds for relief.

Simply, the moving papers consist of a brief declaration from David Kohan that fails to establish, either by verified paper or by evidence, that David Kohan is a real party in interest suitable to take over the place of Plaintiff Felize Kohan in this litigation. This is because the papers fail to show that David Kohan is any of (1) the executor in a named will of Felize Kohan, (2) a successor to initial executor, or (3) an/the administrator of the estate of Felize Kohan.

At most, the unverified moving papers represent that David Kohan is Felize Kohan’s natural adult son and that he is the sole beneficiary of his mother’s estate pursuant to intestate succession. (Motion, 4:5-8.)

However, the verified declaration attached to the moving papers does not make the same representations, limiting itself to describing David Kohan as Felize Kohan’s natural son, describing the circumstances leading to Felize Kohan’s death and attaching a death certificate therefor, and indicating David Kohan seeks to become the plaintiff in place of his late mother. (Motion, Kohan Decl., ¶¶ 1-5 [full contents of declaration].)

This is defective motion work given that a memorandum of points and authorities must include (1) a statement of facts (Cal. Rules of Court, rule 3.1113(b)) supported by admissible evidence and followed by a reference to the supporting evidence accompanying the memorandum (see *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 577-578), and (2) a concise statement of the law, arguments, and evidence relied on and a discussion of the statutes, cases, and textbooks cited in support of the movant’s position (Cal. Rules of Court, 3.1113(b), emphasis added; see, e.g., *Nationwide Ins. v. Tipton* (2023) 91 Cal.App.5th 1355, 1365 [trial court had discretion to ignore arguments that Ds did not properly present in their memorandum of points and authorities in

opposition to P's petition])).

c. Conclusion

The Court accordingly DENIES
non-party David Kohan's motion, without prejudice.

Defendant The Village Green Owners
Association is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party submits on the tentative, the party's email
must include the case number and must identify the party submitting on the
tentative. If the parties do not submit on the tentative, they should arrange
to appear remotely.

DATED: September 24, 2026 _____

MARK C. KIM

Judge of the
Superior Court